

Smt Reetu vs Mahendra Puri on 10 November, 2017

Author: Virendra Kumar Mathur

Bench: Virendra Kumar Mathur

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR

S.B. Civil Transfer Appl. No. 101 / 2016

Smt Reetu w/o Shri Mahendra Puri D/o Shri Yashpal Giri, by caste-
Goswami, aged about 35 years, r/o 8-G-5, Jawaharnagar, Sri
Ganganagar (Raj.)

---Petitioner

Versus

Mahendra Puri s/o Shri Jagdish Puri, by caste Goswami, aged
about 36 years, r/o Ghata Mahandipur Balaji, Teshil Sikarai,
District Dausa (Raj.)

---Respondent

For Petitioner(s) : Mr Trilok Joshi

For Respondent(s) : Mr Kan Singh Oad

HON'BLE DR. JUSTICE VIRENDRA KUMAR MATHUR

Judgment 10/11/2017 This Transfer Application under sec.24 CPC has been filed for transfer of Civil Misc. Case No.7/2016 {Mahendra Puri v. Reetu} filed by respondent under sec.13 of the Hindu Marriage Act, pending before the Additional District Judge, Bandikui, District Dausa to court of District Judge, Sri Ganganagar.

Briefly stated, marriage between the parties was solemnized around 12 years ago at Sri Ganganagar and out of the wedlock, one female child born and she is also living with the applicant at Sri Ganganagar. It was also contended that previously a Transfer Application {Smt Reetu v. Mahendra Puri} was filed in the year 2010 and the same was allowed by the High Court vide order dated 01.07.2011. After order of the High Court, the parties entered into compromise and settled their dispute on 25.06.2015 (2 of 4) [CTA-101/2016] and the suit pending before Family Court, Sriganaganagar was withdrawn. On 11.04.2016, the respondent Mahendra Puri moved a fresh application under sec.13 of the Hindu Marriage Act before Additional District Judge, Bandikui against the applicant, on same repeated grounds.

It was contended that presently daughter of the petitioner is studying in Good Shepherd Public School, Sri Ganganagar in Class-V. The respondent has deserted the petitioner and she was also maltreated for demand of dowry. Ultimately, due to harassment, she lodged a criminal prosecutions against the respondent under secs.498A IPC and also under the provisions of the Domestic Violence Act, which are pending adjudication in different courts at Sri Ganganagar. The applicant, who is living at Sri Ganganagar with her old parents has numerous difficulties and has bona fide reasons to get the matter transferred to the Family Court, Sri Ganganagar.

Notices were issued to the respondent, which were duly served and a reply has been filed on behalf of the respondent. It was averred by respondent in the reply that the petitioner has filed 3 different cases against him, out of which 2 cases are also pending adjudication at Dausa. It was also contended that this Court in Criminal Misc. Transfer Petition No.07/2016 vide order dated 29.09.2016 directed to send record of Criminal Case No.535/2010 {State v. Mahendra Puri} to the court of Chief Judicial Magistrate, Dausa and placed on record copy of order dated 29.09.2016 as Annx.R/1. It was further contended that similarly yet another case filed by the petitioner against the (3 of 4) [CTA-101/2016] respondent for domestic violence was also transferred to Dausa by this Court vide order dated 05.05.2017 passed in Cr. Misc. Transfer Petition No.13/2016 and copy of the order dated 05.05.2017 is placed on record as Annx.R/2.

It was also mentioned that the Additional Chief Judicial Magistrate, Sri Ganganagar in Cr. Case No.524/2009 filed by the petitioner under secs.12, 17, 19 & 31 of the Protection of Women from Domestic Violence Act directed the respondent to provide accommodation for the petitioner, which the respondent has duly complied with and has provided Rooms No.5 & 6 in Hanumant Yatri Niwas at Dausa. The petitioner has been residing at Dausa yet with ill-intention only for the purpose of harassing the respondent she has filed this Transfer Petition. A copy of the order dated 03.02.2015 is also placed on record as Annx.R/3. It was also contended that the respondent is suffering from severe ailing condition as his liver has completely damaged and he is undergoing treatment at Delhi and placed on record copies of prescriptions and medical reports as Annx.R/4.

Heard learned counsel for the parties.

The respondent has admitted that earlier Divorce Petition filed by him was withdrawn because the parties agreed to settle the matter out of the court. Later on, the circumstances changed and he again filed a petition under sec.13 of the Hindu Marriage Act and further stated that in compliance of order passed in Cr. Case No.524/2009 filed by petitioner under secs.12, 17, 19 & 31 of the Protection of Women from Domestic Violence Act, he has provided accommodation to the petitioner in Rooms No.5 & 6 of (4 of 4) [CTA-101/2016] Hanumant Yatri Niwas at Dausa and since then the petitioner is residing at Dausa with her daughter. The respondent denied the facts relating to harassment and it was contended that the petitioner has filed 03 different cases against the respondent, out of which 02 are also pending at Dausa and in Cr. Misc. Transfer Petition No.7/2016 by order dated 29.09.2016 this Court directed to send record of the Cr. Case No.535/2010 (State v. Mahendra Puri) to the court of Chief Judicial Magistrate, Dausa and another case filed under Domestic Violence Act against the respondent was also ordered to be transferred to Dausa by this Court vide order dated 05.05.2017 passed in Cr. Misc. Transfer Petition No.13/2016.

In view of the fact that two cases are already pending for adjudication at Dausa, there is no occasion to get third case filed under sec.13 of the Hindu Marriage Act, which is also pending adjudication at Dausa, be transferred to Sri Ganganagar. There is no ground made out for transfer of Case No.07/2016 (Mahendra Puri v. Reetu) under sec.13 of the Hindu Marriage Act pending in the court of Additional District Judge, Bandikui. The Transfer Application is dismissed.

(DR. VIRENDRA KUMAR MATHUR), J.

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